

- (c) his own criminal act:
- (d) any act committed by him in a state of intoxication or insanity;
- (e) any natural cause or disease or medical or surgical treatment unless such treatment becomes necessary due to injury caused by the said untoward incident.

Explanation. – For the purposes of this section, “passenger” includes –

- (a) a railway servant on duty : and
- (b) a person who has purchased a valid ticket for traveling , by a train carrying passengers, on any date or a valid platform ticket and becomes a victim of an untoward incident.)

125. Application for compensation. – (1) An application for compensation under section 124 (or Sec.124-A) may be made to the Claims Tribunal –

- (a) by the person who has sustained the injury or suffered any loss. Or
 - (b) by any agent duly authorized by such person in this behalf. Or
 - (c) where such person is minor, by his guardian or
 - (d) where death has resulted from the accident (or the untoward incident) by any dependant of the deceased or where such a dependant is a minor, by his guardian.
- (2) Every application by a dependant for compensation under this section shall be for the benefit of every other dependent.

Comments

Section 125 lays down the persons who can make an application for compensation under sec.124 and the time limit within which such application may be made.

Retrospective effect.- In view of the fact that the rights are to be determined at the time of commencement of the lis, and that Chapter XIII of the Railway Act,1989 has not been made retrospectively applicable, expressly or by implication, therefore, subsequent change in law cannot be taken into consideration for holding the application for compensation filed under Sec.82© of the old act 1890 as maintainable, as the appellants

do not fall within the definition of “dependant” as given in Explanation after sub-section(3) of Sec.82-C of the old act 1890 and the meaning assigned to it under sec.2(d) of the workmen’s Compensation Act.

126. Interim relief by railway administration: (1) Where a person who has made an application for compensation under Sec.125 desires to be paid interim relief, he may apply to the railway administration for payment of interim relief along with a copy of the application made under that section.

(2) Where , on the receipt of an application made under sub-section (1) and after making such inquiry as it may deem fit, the railway administration is satisfied that circumstances exist which require relief to be afforded to the applicant immediately , it may, pending determination by the Claims Tribunal of the actual amount of compensation payable under sec.124 (or 124-A) pay to any person who has sustained the injury or suffered any loss, or where death has resulted from the accident , to any dependant of the deceased, such sum as it considers reasonable for affording such relief , so however that the sum paid shall not exceed the amount of compensation payable at such rates as may be prescribed.

(3) The railway administration shall, as soon as may be, after making an order regarding payment of interim relief under sub-section (2) , send a copy thereof to the Claims Tribunal.

(4) Any sum paid by the railway administration under sub-section(2) shall be taken into account by the Claims Tribunal while determining the amount of compensation payable.

Comment

Section 126 provides for giving interim relief by railway administration in case of accidents.

127. Determination of compensation in respect of any injury or loss of goods.- (1) subject to rules as may be made, the rates of compensation payable in respect of any injury shall be determined by the Claims Tribunal.

(2) The compensation payable in respect of any loss of goods shall be such as the Claims Tribunal may, having regard to the circumstances of the case, determine to be reasonable.

Comment

Section 127 provides for the manner in which the rates of compensation payable in respect of injury , compensation for any loss of goods shall be determined by the Claims Commissioner.⁵